

DATA PROCESSING ADDENDUM

Document ID: EVAL-DPA-003

Section 2.1 Processor Instructions

Marker: EVAL-DPA-2.1.

Processor will process Personal Data only on documented instructions from Controller, including instructions in the agreement and applicable order forms.

Processor will promptly notify Controller if it believes an instruction violates applicable data protection law.

Section 4.2 Technical and Organizational Measures

Marker: EVAL-DPA-4.2.

Processor must encrypt Personal Data at rest using AES-256 or stronger encryption and encrypt Personal Data in transit using TLS 1.2 or higher.

Processor must maintain access controls, logging, vulnerability management, and annual workforce privacy training.

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Section 5.1 Subprocessors

Marker: EVAL-DPA-5.1.

Processor may appoint subprocessors only after giving Controller at least 15 days' prior notice through the designated subprocessor notice portal.

Controller may object on reasonable data protection grounds during the notice period.

Section 6.3 Security Incident Notice

Marker: EVAL-DPA-6.3.

Processor must notify Controller without undue delay and no later than 48 hours after confirming a Security Incident involving Personal Data.

The notice must describe the nature of the incident, affected data categories, mitigation steps, and contact information.

Section 8.1 Return or Deletion

Marker: EVAL-DPA-8.1.

Upon termination, Processor must return or delete Personal Data within 45 days unless applicable law requires retention.